
TIBA YA HOME

TERMS OF SERVICE, PLATFORM USE AGREEMENT, TELEMEDICINE TERMS & CLIENT CONSENT

Effective date: 10 August 2026 • Please read carefully before booking a service

PLATFORM OPERATOR

Tiba Ya Home is a healthcare technology and service-coordination platform operated by Jack Reacher Medical Ltd. References to Tiba Ya Home, the Platform, we, us or our refer to Tiba Ya Home and, where applicable, Jack Reacher Medical Ltd., as the entity operating and administering the Platform.

These Terms of Service, Platform Use Agreement, Telemedicine Terms and Client Consent ("Terms") constitute a legally binding agreement between you ("Client", "you", "your") and Tiba Ya Home ("Tiba Ya Home", "the Platform", "we", "us", "our"). Tiba Ya Home is a technology-enabled marketplace and coordination platform that connects Clients and Patients with independent third-party healthcare organisations and professionals, including hospitals, clinics, medical centres, doctors, nurses, clinical officers, therapists, sonographers, laboratory professionals, caregivers and other appropriately qualified and verified service providers ("Service Providers"). The Platform may facilitate in-person/home-based services and online/telemedicine consultations, subject to Service Provider availability, professional scope of practice and applicable law.

By ticking "I Accept" and proceeding to book a service on the Tiba Ya Home platform, you confirm that you have read, understood, and agree to be legally bound by this entire document, including the Limitation of Liability, Independent Service Provider, Indemnification, and Consent to Treatment sections below.

This document should be read together with our Privacy Policy.

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1. Acceptance of Terms

By creating an account, browsing service categories, or clicking "I Accept" / "Agree and Continue" before completing a booking, you acknowledge that you have read, understood, and voluntarily agree to be bound by these Terms in their entirety, including the medical consent, liability, and indemnity provisions. If you do not agree to any part of these Terms, you must not proceed with registration or booking.

These Terms apply to every booking made through the Platform, regardless of the category or package selected, and remain in force for the duration of your use of the Platform.

2. Definitions

- **"Platform"** means the Tiba Ya Home website, mobile application, and any associated booking, payment or communication channel operated by Tiba Ya Home.
- **"Client / User"** means any individual who registers on, browses, or books a Service through the Platform, whether for themselves or on behalf of a patient.
- **"Service Provider"** means an independent hospital, clinic, medical centre, healthcare organisation, doctor, nurse, clinical officer, therapist, sonographer, laboratory professional, caregiver, or other qualified professional or entity that has entered into a commercial/participation arrangement with Tiba Ya Home, has been onboarded or verified to the extent stated on the Platform, and is not an employee of Tiba Ya Home.
- **"Service"** means any medical, nursing, caregiving, diagnostic, therapy, transport, wellness, membership, or equipment-related offering listed in the Platform's Service Catalogue and booked by a Client.
- **"Booking"** means a confirmed request by a Client for a specific Service, at a specified time, location and scope, made through the Platform.
- **"Patient"** means the individual who physically receives the Service, who may or may not be the Client making the booking.
- **"Scope of Service"** means the specific tasks, procedures and duration described for the Service booked, as set out in the Service Catalogue, quotation, or Booking confirmation.
- **"Emergency Service"** means a Service flagged as suitable for urgent or same-day dispatch, which is subject to Service Provider availability and does not constitute an emergency medical response service.
- **"Telemedicine Service"** means a remote consultation, clinical assessment, follow-up, advice or other healthcare interaction conducted through the Platform using video, audio, chat, telephone or other supported electronic communication technology and delivered by an independent Service Provider.
- **"Ambulance Service"** means a scheduled, non-emergency patient-transport service delivered by an independently operated and licensed ambulance Service Provider onboarded to the Platform, booked in advance for purposes such as hospital-to-home transfers, inter-facility transfers, discharge transport, or transport to a scheduled medical appointment. An Ambulance Service booked through the Platform is not an emergency response and is subject to Section 11.

- **"Verification"** means the onboarding checks Tiba Ya Home elects to perform on a Service Provider, which may include review of identity, professional registration/licensing, qualifications and other documents. Verification is not a guarantee of future competence, conduct, clinical outcome or continuous licensure.

3. Nature of the Platform — Tiba Ya Home Is a Technology Marketplace and Healthcare Coordination Platform

This section is fundamental to the relationship between you, Tiba Ya Home and every Service Provider.

Tiba Ya Home, a platform operated by Jack Reacher Medical Ltd., operates a technology platform that enables Clients and Patients to discover, communicate with, book and, where applicable, pay for services supplied by independent third-party Service Providers. Tiba Ya Home does not itself provide the underlying clinical, diagnostic, nursing, therapeutic, hospital, clinic, laboratory, pharmacy, ambulance, caregiving or telemedicine services unless expressly stated otherwise in a separate written agreement.

- Tiba Ya Home is a marketplace, technology, booking, coordination and communication facilitator.
- Service Providers remain independently responsible for the professional and clinical services they provide, including diagnosis, treatment, prescriptions, procedures, referrals, clinical records, patient consent, professional standards, licensing and compliance with applicable law.
- Tiba Ya Home does not employ Service Providers and does not create an employment, partnership, joint venture, agency or principal-provider relationship merely because a Service Provider is listed, verified, booked or paid through the Platform.
- Tiba Ya Home may perform onboarding and verification checks, but no verification badge, listing, rating, profile or Platform approval constitutes a warranty or guarantee of the Service Provider's competence, future conduct, availability, professional judgment, clinical outcome or compliance.
- The Platform may facilitate telemedicine consultations, but the clinical consultation is provided by the independent Service Provider, not by Tiba Ya Home.
- Tiba Ya Home does not guarantee that a particular Service Provider will accept a booking, attend at a particular time, remain continuously available, diagnose a condition, prescribe a particular treatment or achieve a particular outcome.

Any branding, wording or interface that refers to "our doctors", "our nurses", "our providers" or similar expressions is used for platform presentation and convenience and does not alter the independent legal and professional status of the Service Provider.

4. Eligibility & Account Registration

To book a Service you must be at least 18 years old and legally capable of entering into a binding contract, or be booking on behalf of a minor or dependent in your capacity as parent, legal guardian, or authorised caregiver.

You agree to provide accurate, current and complete information during registration and booking (including the Patient's name, age, location, and relevant medical information) and to keep such information updated. Tiba Ya

Home is entitled to rely on the information you provide and is not responsible for consequences arising from inaccurate, incomplete, or outdated information supplied by you.

You are responsible for maintaining the confidentiality of your account login details and for all activity that occurs under your account.

5. Services Facilitated Through the Platform

The Platform may facilitate access to services offered by independent Service Providers. The availability, scope, professional suitability, price and delivery method of any service are determined by the relevant Service Provider and the booking confirmation.

- Hospital & Clinic Services — Services supplied by participating hospitals, clinics, medical centres and other healthcare facilities.
- Doctor, Nurse & Clinical Professional Services — Home visits, consultations, reviews and other professional services provided by appropriately qualified independent professionals.
- Nursing & Caregiver Services — Nursing, caregiver and assisted-living support provided by independent Service Providers.
- Elderly, Chronic & Assisted Care — Care packages and support for elderly persons and patients requiring ongoing assistance.
- Post-Hospitalization & Recovery Care — Recovery support following surgery, illness, injury, stroke, cancer treatment or other conditions.
- Palliative & Oncology Care — Services offered by appropriately qualified Service Providers for palliative and cancer-related support.
- Wound, IV & Catheter Care — Services such as wound care, IV/infusion services, catheter care and related procedures, where clinically appropriate and lawfully provided.
- Diagnostics & Monitoring — Laboratory sample collection, imaging/ultrasound and monitoring services supplied by participating providers.
- Therapy & Rehabilitation — Physiotherapy, occupational therapy, child development therapy and other rehabilitation services provided by qualified professionals.
- Telemedicine & Online Consultations — Remote consultations and clinical interactions conducted through the Platform by verified/appropriately qualified Service Providers, subject to Section 18.
- Ambulance Booking Services — Scheduled, non-emergency patient transport by independent, licensed ambulance Service Providers onboarded to the Platform. The Platform does not accept or dispatch emergency ambulance bookings — see Section 11.
- Patient Transport & Other Ancillary Services — Where listed, transport, escort, equipment or other ancillary services may be facilitated through independent third parties. Tiba Ya Home is not itself the transport operator unless expressly stated in writing.
- Membership, Subscription & Corporate Health Plans — Recurring or corporate packages that facilitate access to participating Service Providers.
- Medical Equipment & Supplies — Rental or purchase of equipment and supplies where offered through participating suppliers.

Tiba Ya Home does not guarantee that every category will be available in every geographic area. Service descriptions and displayed prices may be updated from time to time. The Service Provider may assess the Patient and determine whether the requested service is clinically appropriate, legally permitted and within the provider's professional scope.

6. Booking, Scheduling & Confirmation

A Booking is only confirmed once you receive confirmation through the Platform (via app, SMS, email or call). Submitting a request does not guarantee that a Service Provider will be available at the requested time.

For Services flagged as suitable for urgent or same-day dispatch, Tiba Ya Home will make reasonable efforts to expedite Service Provider assignment, but dispatch and arrival times are estimates only and are not guaranteed. See Section 10 for the emergency-services disclaimer.

You must provide an accurate location for any home-based Service. Any applicable service, provider, travel, delivery or other charge will be disclosed at or before confirmation of the relevant Booking. Tiba Ya Home does not maintain or publish a fixed transport-charge table and does not itself impose a standard transport tariff on Service Providers.

7. Client & Patient Responsibilities

To enable safe and effective delivery of the Service, you agree to:

- Provide complete, accurate and truthful information about the Patient's medical history, current condition, allergies, medication and any known risks, prior to and during the visit.
- Ensure a responsible adult is present at the location for the duration of the visit where the Patient is a minor, is unable to consent, or where the nature of the Service reasonably requires supervision or assistance.
- Provide a safe, reasonably clean, and accessible environment in which the Service Provider can work, including access to water, electricity, and a private space where clinically necessary.
- Treat Service Providers with respect and refrain from any abusive, threatening, discriminatory or unsafe conduct. Tiba Ya Home reserves the right to end a visit and suspend your account where a Service Provider reports unsafe conditions or misconduct.
- Only request, during the visit, services that fall within the Scope of Service confirmed at Booking. Any request to a Service Provider to perform additional or different procedures on-site is addressed in Section 8 below.

You are responsible for ensuring that the individual receiving the Service, or their legal guardian, is able to give informed consent as described in Section 12.

8. Scope of Service; Requests Beyond the Booked Service

This section directly governs what happens if a Service Provider is asked, or chooses, to act outside the Service that was booked.

Each Booking has a defined Scope of Service, based on the Service description, package inclusions, and any specific instructions confirmed at the time of Booking. Service Providers are independently engaged and authorised to perform only the Scope of Service confirmed for that Booking.

- If a Client, Patient, or any person at the location requests a Service Provider to perform a procedure, treatment, or task that is not part of the confirmed Scope of Service, the Service Provider may decline, refer the Client to book the appropriate Service separately, or — solely at the Service Provider's own independent professional judgment and responsibility — agree to provide it.
- Any service, advice, treatment, or act performed by a Service Provider that goes beyond, or was not part of, the Scope of Service confirmed through the Platform is undertaken solely between the Client/Patient and the Service Provider, at the Service Provider's own independent professional responsibility, and is not authorised, endorsed, supervised, or covered by Tiba Ya Home in any way.
- Tiba Ya Home accepts no responsibility and bears no liability whatsoever for any act, omission, advice, treatment, injury, loss, or damage arising from a Service Provider acting outside the Scope of Service, whether performed at the Client's request, on the Service Provider's own initiative, or through any private/off-platform arrangement.
- Booking or paying a Service Provider directly, or arranging any service with them outside the Platform ("off-platform engagement"), is done entirely outside Tiba Ya Home's knowledge and control. Such arrangements receive no protection, vetting assurance, insurance, complaint handling, or liability coverage from Tiba Ya Home, even if the Service Provider was originally introduced through the Platform.

If you believe a Service you require falls outside a currently listed category, please contact Tiba Ya Home to discuss a custom Booking before the visit, rather than requesting it directly from the Service Provider on-site.

9. Medical & Telemedicine Disclaimer

Services facilitated through the Platform, whether in person, at home, at a facility or remotely, are provided by independent Service Providers. Tiba Ya Home does not itself diagnose, prescribe, treat, examine, monitor or make clinical decisions for Patients.

Telemedicine has inherent limitations. A remote consultation may not permit physical examination, immediate diagnostic testing, direct observation, emergency intervention or other procedures that may be necessary to reach a reliable diagnosis or treatment plan. A Service Provider may therefore require an in-person assessment, diagnostic test, referral or hospital review.

Tiba Ya Home does not guarantee any particular medical outcome, diagnosis, treatment, prescription, referral, recovery, response time or result. Clinical judgment and all clinical decisions remain solely with the relevant Service Provider.

You should seek appropriate in-person medical attention whenever a remote consultation is insufficient, symptoms worsen, or the Service Provider recommends escalation.

10. Emergency Situations

Tiba Ya Home is not an emergency response service. If the Patient is experiencing a life-threatening condition (such as difficulty breathing, chest pain, severe bleeding, loss of consciousness, or suspected stroke), call 999, 112, or your local ambulance/emergency service immediately, and proceed to the nearest hospital emergency department. Do not rely on the Platform to book a Service in a life-threatening emergency.

Where a Service is labelled as suitable for "urgent" or "same-day" dispatch, this indicates that Tiba Ya Home will attempt to prioritise assignment of an available Service Provider; it is not a guarantee of a specific response time and is not equivalent to ambulance or emergency medical services.

11. Ambulance Booking Services

Tiba Ya Home onboards independent, licensed ambulance Service Providers who may be booked through the Platform for scheduled, non-emergency patient transport — for example, planned hospital-to-home transfers, inter-facility transfers, discharge transport, or transport to a scheduled medical appointment.

Tiba Ya Home does not accept, dispatch, or guarantee emergency ambulance bookings through the Platform. The Platform must never be used to request urgent or emergency ambulance assistance. If the Patient requires emergency transport, call your local emergency ambulance service directly — do not wait for a Booking confirmation through the Platform.

- Ambulance bookings made through the Platform are treated as scheduled, non-emergency transport requests only, and follow the same advance confirmation, availability and scheduling process as any other Service (see Section 6).
- The ambulance provider assigned to a Booking is an independent Service Provider, solely responsible for the vehicle, crew, equipment, any medical care administered in transit, and compliance with applicable transport, ambulance-licensing and healthcare regulations, in the same way as any other Service Provider under Section 13.
- Tiba Ya Home does not own, operate, or crew any ambulance, and does not guarantee vehicle availability, arrival time, or the clinical care administered during transport.
- If a Patient's condition becomes urgent or unstable while awaiting a scheduled Ambulance Service Booking, you must independently contact 999, 112, or your local emergency service rather than relying on the Platform.

12. Consent to Treatment

By booking a clinical Service (including but not limited to doctor or nurse visits, wound care, IV therapy, catheter procedures, diagnostics, or nursing/caregiving services), you, or the Patient's legal guardian, confirm that:

- You give informed consent for the assigned Service Provider to assess and, where clinically appropriate, treat the Patient in accordance with the confirmed Scope of Service.

- The Service Provider will, where practicable, explain the proposed procedure, its purpose, and any material risks before proceeding, and you or the Patient retain the right to ask questions and to refuse or withdraw consent to any procedure at any time, without penalty beyond applicable cancellation terms.
- Where the Patient is a minor or is otherwise unable to give informed consent, the person booking the Service confirms they are legally authorised to consent to care on the Patient's behalf.

Consent given under this section relates only to the confirmed Scope of Service; any additional procedure requires separate consent and is subject to Section 8 above.

13. Independent Service Providers & Verification

Service Providers may include hospitals, clinics, medical centres, licensed healthcare organisations and freelance or independent healthcare professionals. They are independent contractors/third-party providers and are not employees, agents, partners or representatives of Tiba Ya Home.

Tiba Ya Home may conduct reasonable onboarding checks, including review of identification, professional registration, licences, qualifications, certificates, facility details, references or other documentation. However, verification is limited to the information and checks reasonably available to Tiba Ya Home and does not constitute a warranty, guarantee or certification of future competence or conduct.

- Each Service Provider is solely responsible for maintaining all licences, permits, registrations, insurance, professional indemnity cover and approvals required for its services.
- Each Service Provider is solely responsible for complying with applicable healthcare, professional, employment, tax, consumer, data-protection, telemedicine and patient-safety requirements.
- Each Service Provider is solely responsible for clinical decisions, patient assessment, diagnosis, treatment, prescriptions, procedures, referrals, follow-up, clinical documentation and patient records relating to services it provides.
- Tiba Ya Home may suspend, remove or restrict a Service Provider where it receives credible information suggesting non-compliance, safety concerns, misconduct, expired credentials or other material risk.

Nothing in these Terms makes Tiba Ya Home the employer, clinical supervisor, treating facility, medical director or insurer of any Service Provider.

14. Maximum Permitted Limitation of Liability

Please read this section carefully. To the fullest extent permitted by applicable Kenyan law, Tiba Ya Home's role is limited to operating the technology platform and facilitating interactions between Clients and independent Service Providers.

- Tiba Ya Home shall not be responsible or liable for any act, omission, negligence, malpractice, professional error, misconduct, fraud, criminal act, treatment, diagnosis, prescription, procedure, referral, delay, cancellation, failure to attend, clinical outcome or other conduct of a Service Provider.
- Tiba Ya Home shall not be liable for death, injury, illness, disability, deterioration, complications, adverse reactions, misdiagnosis, treatment failure, loss of income, emotional distress, property damage or any other loss arising from services provided by an independent Service Provider.

- Tiba Ya Home shall not be responsible for the availability, quality, accuracy, completeness or suitability of any clinical advice, telemedicine consultation, medical information, diagnosis, prescription or treatment recommendation provided by a Service Provider.
- Tiba Ya Home shall not be liable for interruption, outage, delay, failed connection, device failure, internet failure, telecommunications failure, software malfunction, cyber incident, third-party integration failure or other technical limitation affecting the Platform, except to the extent liability cannot lawfully be excluded.
- Tiba Ya Home shall not be liable for any off-platform arrangement, direct payment, private engagement, additional service or treatment arranged between a Client/Patient and a Service Provider outside the Platform.
- Tiba Ya Home shall not be liable for indirect, incidental, special, exemplary, punitive or consequential loss, including loss of profits, business, opportunity, goodwill or data, to the maximum extent permitted by law.
- Where Tiba Ya Home is nevertheless found liable for a claim arising solely from the operation of the Platform itself, and not from the professional services or acts of a Service Provider, the aggregate liability of Tiba Ya Home shall, to the fullest extent permitted by law, be limited to the amount actually paid to Tiba Ya Home for the specific Booking or transaction giving rise to the claim.

Nothing in these Terms excludes or limits liability that cannot lawfully be excluded or limited under Kenyan law. Where the law imposes a non-excludable duty on Tiba Ya Home, the relevant liability shall be limited to the minimum extent required by law.

15. Client Indemnification

To the fullest extent permitted by applicable law, you agree to indemnify, defend and hold harmless Tiba Ya Home, its owners, directors, officers, employees, contractors, technology providers, affiliates and representatives from and against claims, proceedings, liabilities, damages, penalties, losses, costs and reasonable legal fees arising out of or connected with:

- Your breach of these Terms or applicable law;
- False, inaccurate, incomplete or misleading information supplied by you or on your behalf;
- Your misuse of the Platform, account or payment systems;
- Your conduct or the conduct of any person you permit to access or use the Platform or Service location;
- Any request for a Service Provider to perform a service outside the confirmed Scope of Service;
- Any off-platform engagement, direct payment or private arrangement with a Service Provider introduced through the Platform;
- Any claim brought by a Patient, family member or third party arising from a Booking made by you on behalf of another person, except to the extent finally determined by a competent authority to have resulted from Tiba Ya Home's own non-excludable liability.

16. Fees, Payment, Cancellation & Refunds

Prices displayed on the Platform are in Kenya Shillings (KES) unless stated otherwise and are subject to change without notice for future Bookings. Some Services (for example, Specialist Consultations and Corporate Mobile Health packages) are quoted within a range or on request, with the final price confirmed before or at the point of Service.

Certain Services list consumables, medication, laboratory tests, or equipment as billed separately from the base price; these additional costs will be communicated where reasonably practicable before they are incurred.

Payment is due as indicated at Booking (which may include upfront payment, payment on completion, or a subscription/membership billing cycle). Cancellation, rescheduling and refund conditions (including any applicable cancellation fee) will be displayed at the time of Booking and form part of these Terms for that Booking.

For membership and monthly care plans (Silver/Gold/Platinum memberships and TibaCare plans), billing recurs on the applicable cycle until you cancel in accordance with the cancellation process shown in your account settings; unused visits or entitlements do not automatically carry over unless expressly stated at the point of purchase.

17. Service Provider Responsibilities & Indemnity

Every Service Provider using or participating in the Platform is responsible for its own professional and commercial obligations. As a condition of participation, each Service Provider agrees, to the fullest extent permitted by law, to indemnify, defend and hold harmless Tiba Ya Home, its owners, directors, officers, employees, contractors, affiliates and representatives against claims, proceedings, liabilities, damages, regulatory penalties, losses, costs and reasonable legal fees arising from or connected with:

- Any clinical service, consultation, treatment, diagnosis, prescription, procedure, referral or other professional service provided by the Service Provider;
- Any negligence, malpractice, professional misconduct, omission, error, fraud, criminal act or breach of professional duty by the Service Provider or its personnel;
- Any failure to maintain valid professional registration, licences, permits, certificates, insurance or professional indemnity cover;
- Any breach of patient confidentiality, privacy, data-protection obligations or professional ethical requirements attributable to the Service Provider;
- Any injury, illness, death, loss, damage, complaint, claim or regulatory action arising from the Service Provider's provision of services;
- Any telemedicine consultation or remote clinical interaction provided by the Service Provider;
- Any employee, subcontractor, locum, freelance professional or other person engaged by the Service Provider to deliver services.

The Service Provider remains solely responsible for maintaining adequate professional indemnity and other insurance appropriate to the services it provides. Tiba Ya Home may require evidence of such cover and may suspend a provider that fails to maintain it.

18. Telemedicine & Online Consultations

Tiba Ya Home may provide technology that enables online consultation between a Client/Patient and an independent Service Provider through video, audio, chat, telephone or other electronic communication methods.

- The healthcare professional conducting the consultation is solely responsible for the clinical consultation, assessment, diagnosis, treatment recommendations, prescriptions, referrals, follow-up and clinical records arising from the consultation.
- Tiba Ya Home provides the technology and coordination layer only and does not itself provide medical advice through the telemedicine service.
- A telemedicine consultation may be unsuitable where physical examination, urgent intervention, diagnostic testing or direct observation is necessary. The Service Provider may require the Patient to attend a facility or seek emergency care.
- Clients must provide accurate and complete information and must not conceal material symptoms, medications, allergies, diagnoses or other relevant information.
- Users are responsible for having a suitable device, internet/telecommunications connection, private environment and other requirements necessary to participate in a remote consultation.
- Tiba Ya Home does not guarantee uninterrupted connectivity, perfect audio/video quality, availability of a particular professional or completion of a consultation.
- Where permitted by law and with the required consent, communications and consultation information may be recorded, stored or processed for clinical, quality, security, legal, regulatory and service-management purposes as described in the Privacy Policy.
- Telemedicine services are subject to applicable Kenyan laws, professional standards, data-protection requirements and the Service Provider's scope of practice.

Telemedicine is not an emergency service. If a Patient has severe breathing difficulty, chest pain, severe bleeding, loss of consciousness, suspected stroke, seizure, severe trauma or any other life-threatening condition, do not rely on an online consultation. Seek emergency medical assistance immediately.

19. Medical Equipment Rental & Purchase

Where you rent or purchase medical equipment through the Platform, the equipment may be supplied by an independent third-party supplier or, only where expressly stated, by Tiba Ya Home. The applicable supplier will be identified at the point of sale where reasonably practicable.

You are responsible for the safe use, storage, and (for rentals) timely return of equipment in the condition provided, ordinary wear and tear excepted. Tiba Ya Home is not liable for injury or damage arising from misuse of equipment contrary to instructions provided, or from a pre-existing fault that a reasonable inspection would not have revealed.

20. Conduct, Safety & Right to Refuse or Suspend Service

Tiba Ya Home and its Service Providers reserve the right to refuse, suspend, or terminate a Service where the location is assessed as unsafe, where the Client, Patient, or any person present behaves abusively, threateningly, or in a manner that puts the Service Provider at risk, or where the request falls outside a Service Provider's competence or licensure.

Tiba Ya Home reserves the right to suspend or terminate a Client's account for breach of these Terms, fraudulent activity, non-payment, or conduct that endangers Service Providers or other users.

21. Complaints & Reporting Concerns

If you have a concern about the quality, safety, conduct, or licensing status of a Service Provider, or about any aspect of a Booking, please report it to Tiba Ya Home promptly through the contact channels in Section 28. Tiba Ya Home will review reported concerns and may, at its discretion, remove a Service Provider from the Platform pending or following investigation.

Reporting a concern to Tiba Ya Home does not constitute an admission of liability by Tiba Ya Home and does not substitute for reporting suspected criminal conduct to the Kenya Police Service, or professional misconduct to the applicable regulatory body.

22. Data Protection & Confidentiality

Tiba Ya Home collects and processes personal data, including sensitive health and telemedicine information, in order to operate the Platform, facilitate Bookings and consultations, process payments, support Service Providers, maintain security, comply with legal obligations and improve services, in accordance with applicable Kenyan data-protection law. Health and consultation information may be shared with the relevant Service Provider and necessary technology/service partners strictly for legitimate purposes described in our Privacy Policy, which forms part of these Terms by reference.

Service Providers, as independent professionals, are separately bound by their own professional confidentiality obligations (for example, doctor–patient and nurse–patient confidentiality) in respect of information obtained during the course of delivering a Service.

23. Intellectual Property

All content on the Platform, including the Tiba Ya Home name, logo, service catalogue descriptions, and software, is the property of Tiba Ya Home or its licensors and is protected by applicable intellectual property laws. You may not copy, reproduce, or exploit any part of the Platform without prior written consent.

24. Suspension & Termination of Access

Tiba Ya Home may suspend or terminate your access to the Platform at any time, with or without notice, for breach of these Terms, suspected fraud, non-payment, or conduct that risks the safety of Service Providers or

other users. You may close your account at any time by contacting Tiba Ya Home; Bookings already confirmed remain subject to the cancellation terms applicable to them.

25. Force Majeure

Tiba Ya Home is not liable for any delay or failure to perform its obligations under these Terms resulting from causes beyond its reasonable control, including natural disasters, civil unrest, epidemic or pandemic conditions, government action, strikes, or failure of third-party payment, telecommunications, or transport infrastructure.

26. Governing Law & Dispute Resolution

These Terms are governed by and construed in accordance with the laws of the Republic of Kenya.

Any dispute arising out of or in connection with these Terms or your use of the Platform shall first be referred to good-faith negotiation between the parties. If unresolved within thirty (30) days, the dispute may be referred to arbitration in Nairobi in accordance with the Arbitration Act (Kenya), or, at Tiba Ya Home's election, submitted to the courts of competent jurisdiction in Kenya. Nothing in this clause prevents either party from seeking urgent interim or injunctive relief where legally available.

27. Changes to These Terms

Tiba Ya Home may update these Terms, the Service Catalogue, or pricing from time to time. Updated Terms will be posted on the Platform with a revised effective date, and continued use of the Platform after such changes constitutes acceptance of the updated Terms. Material changes affecting an active Booking will not apply retroactively to that Booking without your consent.

28. General Provisions

Severability: If any provision of these Terms is held invalid or unenforceable, the remaining provisions continue in full force and effect.

Entire Agreement: These Terms, together with the Privacy Policy and any Booking-specific terms shown at checkout, constitute the entire agreement between you and Tiba Ya Home regarding your use of the Platform.

No Waiver: Tiba Ya Home's failure to enforce any provision of these Terms does not constitute a waiver of that provision.

Contact: For questions about these Terms, telemedicine, Service Provider concerns or complaints, please contact Tiba Ya Home:

Data Protection Officer / Support Contact: Cyrus Mundenyu

Email: tibayahome@gmail.com

Phone: +254 712 444 422

Client Acknowledgement & Consent

Before proceeding to book a Service, you will be asked to confirm the following by ticking the checkbox and clicking "I Accept":

1. I have read and understood the Tiba Ya Home Terms of Service, Platform Use Agreement, Telemedicine Terms and Client Consent in full.
2. I understand that Tiba Ya Home is a technology and booking platform that connects me with independent third-party hospitals, clinics, healthcare organisations and professionals, and is not itself the healthcare provider for services delivered by those Service Providers.
3. I understand that Service Providers are independently responsible for their professional services, clinical decisions, conduct, licences, insurance and compliance with applicable law.
4. I understand and accept the limitations on Tiba Ya Home's liability and the indemnification provisions to the fullest extent permitted by law.
5. I confirm that any information I have provided about the Patient's condition, history, medication, allergies and other relevant matters is accurate and complete to the best of my knowledge.
6. I understand that telemedicine has limitations and that an online consultation may result in a recommendation for an in-person examination, diagnostic test, referral or emergency care.
7. I understand that the Platform is not an emergency response service and that in a life-threatening emergency I will seek emergency medical assistance immediately.
8. I give informed consent for the relevant independent Service Provider to assess and, where clinically appropriate and legally permitted, provide the booked service, including a telemedicine consultation where selected.
9. I agree to the pricing, cancellation, payment and other Booking-specific terms displayed at checkout.

☐ **I Accept the Terms of Service and Consent to Treatment / Telemedicine**